

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1
Honorable Eunice Lee, Presiding
TBD, Courtroom Clerk
191 North First Street, San Jose, CA 95113

DATE: June 2, 2026 TIME: 9:00 A.M. and 9:01 A.M.

**To contest the ruling, call the Court at (408) 808-6856 before 4:00 P.M.
Make sure to also let the other side know before 4:00 P.M. that you plan to contest the ruling,
in accordance with California Rule of Court, Rule 3.1308(a)(1) and Local Rule 8D.**

****Please specify the issue to be contested when calling the Court and counsel****

LAW AND MOTION TENTATIVE RULINGS

9:01 A.M.			
LINES 1-2	22CV402055	VolumeFi Software, Inc. vs Zaki Manian	Hearing: Pro Hac Vice Parties to appear.
LINE 3	23CV421624	Faye Sears vs Amanda Hoffman	Motion to Withdraw as Attorney Parties to appear.
LINE 4	24CV431707	Brandi Pizzola et al vs Val Chris Investments, Inc et al	Motion to Withdraw as Attorney Parties to appear.
LINE 5	25CV464587	Masoud Borhani vs Pedro Ramirez Rodriguez	Motion to Withdraw as Attorney Parties to appear.

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9:00 A.M.

Calendar Lines # 1- 2

Case Name Fuheng, Inc. et al vs Zihan Liu

Case No. 24CV441593

Motion to Set Aside (Line #1) & Motion to Strike (Line #2)

MOTION TO SET ASIDE ATTORNEY'S FEES (LINE #1)

I. BACKGROUND

Before the court is Defendant Zinah Liu's ("Liu") Motion to Set Aside and Vacate the award for attorney's fees. This motion arises from plaintiff's motion for attorney's fees that came for hearing on April 17, 2025 in front of the Honorable Shella Deen. After the hearing on the motion, Judge Deen awarded attorney's fees for the plaintiff in the amount of \$10,400.00.

On February 3, 2026, the Court heard the Defendant's motion for reconsideration to the March 12, 2025 order granting plaintiff's motion to strike the third cause of action in the first amended complaint and motion for attorney's fees. The Court denied both requests and noted that the defendant failed to comply with Code of Civil Procedure section 1008(a) and also failed to demonstrate any new or different facts, circumstances, or law warranting reconsideration.

Plaintiffs oppose the motion and filed opposition briefs on March 16, 2026 and provided subsequent supplemental briefing in support of its opposition to defendant's motion to set aside attorney fees. The plaintiff asserts that the Court already heard and denied Defendant's motion for reconsideration of the same order and seeks to have this matter denied. Defendant asserts that the defendant seeks to relitigate the matter under section 473, which is improper as constitutes a collateral attack on a final order that has already been litigated and there is no presentation of new facts. (Plaintiff's opposition, p. 2). Plaintiff contends that the party may not repeatedly challenge the same ruling by filing successive motions and that the defendant fails to articulate any new or different facts, circumstances, or law meriting reconsideration and vacating the attorney's fees award and that Defendant appeared at the April 17, 2025 hearing. (*Id.*, at p. 3). On April 28, 2025, the defendant filed a motion for reconsideration. Plaintiff asserts that Defendant raises the same arguments that she did not receive notice of the fee motion, which was already considered in the February 3, 2026 hearing.

The Court has carefully reviewed the moving papers, including Defendant's Motion to Set Aside (totaling 7 pages); Declaration of Zihan Liu in support of the motion to vacate/set aside (totaling 13 pages); Plaintiffs opposition (totaling 5 pages); Declaration of Andy Yang in opposition to the motion to set aside (totaling 11 pages); opposition of Zihan Liu to plaintiff's motion for sanctions and attorney's fees (totaling 4 pages); Plaintiff's reply in support of attorney's fees and sanctions and supplemental reply Declaration of Andy Yang with attached Exhibits A-B (totaling 13 pages); proof of services; and the pleadings.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure

A. CODE OF CIVIL PROCEDURE SECTION 473(B)

Code of Civil Procedure section § 473(b) provides for both discretionary and mandatory relief. In terms of discretionary relief section 473(b), in pertinent part, reads as follows:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken. . .